

FREEDOM OF INFORMATION APPLICATION

Freedom of Information Act 1992 (WA)

Date: 19 June 2026

To: FOI Officer, Shire of Boyup Brook, PO Box 2 / 55 Abel Street, Boyup Brook WA 6244 (Email: shire@boyupbrook.wa.gov.au)

From: A Boyup Brook resident (applicant details provided to the Shire)

APPLICATION FOR ACCESS TO DOCUMENTS

I, the applicant, apply under section 12 of the Freedom of Information Act 1992 (WA) for access to the following documents held by or on behalf of the Shire of Boyup Brook.

BACKGROUND

Rylington Park is a 650-hectare property at Mayanup, 27km from Boyup Brook, gifted to the Shire of Boyup Brook in 1985 by the late Mr Eric Farleigh for agricultural research and training and for the betterment of the Boyup Brook community. The property was donated to be held in trust for the benefit of the entire community.

In December 2021, following a public consultation process, the Shire of Boyup Brook adopted The Charter of the Rylington Park Institute for Agricultural Training and Research ("the Charter"). The Charter establishes six objectives for the property, including broad community participation, agricultural training and research in partnership with Edith Cowan University, scholarships for youth in agriculture, field days, and the application of farm profits to community-based projects.

On 15 April 2026, at a Special Council Meeting convened for other purposes, the homestead renovation and CEO occupation were admitted as a late item — Item 7.1.1 — without the notice ordinarily required for matters of this significance. No supporting attachments, financial analysis, independent valuation, occupancy terms, or assessment of charter compliance were provided with the agenda or tabled at the meeting for public inspection. The item was moved, discussed and carried within a meeting lasting 14 minutes in total (5:30pm to 5:44pm).

Community members had no prior notice that a decision of this nature — the expenditure of \$50,000 of community reserve funds and the allocation of a community asset as a private residence — was to be considered. No public comment opportunity was provided.

At the meeting, a councillor referenced receiving a prior "chat" communication about the proposal. The existence of a pre-meeting briefing, in the absence of any formal agenda attachment, raises further questions about the information councillors relied upon when voting.

The dwelling and all grounds remain Shire property, gifted to the community and held in trust in accordance with the terms of the original bequest and the adopted Charter.

The documents sought below relate to the governance of that decision and the ongoing occupation and alteration of this community asset.

PART A — PRE-MEETING COMMUNICATIONS REGARDING RYLINGTON PARK HOMESTEAD

I seek access to:

1. All communications — including but not limited to SMS messages, WhatsApp messages, Microsoft Teams messages, email, or any other electronic or written format — sent to or received by any councillor, the Chief Executive Officer, or any Shire officer regarding: (a) the proposed renovation of the Rylington Park homestead at 1437 Boyup Brook–Cranbrook Road, Mayanup; and/or (b) the proposed occupation of that homestead by the Chief Executive Officer; during the period 1 January 2026 to 15 April 2026 (inclusive).

PART B — CEO OCCUPANCY AGREEMENT

At the same meeting, the Chief Executive Officer stated: "I'll be happy to sign and attend your contract with Council right now if you'd like." This statement indicates no formal written occupancy agreement was in place at the time Council voted to approve CEO occupation and \$50,000 in renovation expenditure (Decision CM 26/04/084).

I seek access to:

2. Any occupancy agreement, licence, contract, or formal written arrangement between the Shire of Boyup Brook and the Chief Executive Officer Leonard Long regarding occupation of the Rylington Park homestead, including any draft versions prepared before or after 15 April 2026.

3. Any written authority, approval, Council resolution, or direction permitting the occupant(s) of the Rylington Park homestead to alter, remove, replace or modify any fixtures, fittings, plantings, garden features or landscaping within the homestead curtilage, homestead garden, or surrounding grounds of the property at 1437 Boyup Brook–Cranbrook Road, Mayanup.

PART C — CONFIDENTIAL RPC DECISIONS

At the Rylington Park Committee meetings of 20 November 2025 and 5 February 2026, the Committee resolved to close the meetings to the public under Section 5.23(2) of the Local Government Act 1995. The following decisions were made in closed session and have not been published: RP 25/11/048, RP 25/11/049, RP 25/11/050 (20 November 2025); RP 26/02/010, RP 26/02/011, RP 26/02/012, RP 26/02/013, RP 26/02/014 (5 February 2026).

I seek access to:

4. The documents relating to and recording the above decisions, including any reports, attachments, or options papers considered by the Committee during those closed sessions, in particular Item 14.1.1 "Potential future operational models for Rylington Park" (November 2025) and Item 11.1.1 (February 2026).

I note that, in relation to Part C, the closed session resolutions themselves cited only "Section 5.23(2)" without identifying the specific paragraph relied upon. I respectfully request that any claim of exemption in response to this application also specify which paragraph of s.5.23(2) was the basis for closure at each meeting.

PART D — ACCOUNTING FOR RENOVATION EXPENDITURE AND PERSONAL LABOUR

At the 15 April 2026 Special Council Meeting, the Chief Executive Officer stated during discussion of late Item 7.1.1: "Ricky and I will be doing most of the work ourselves that we can do. Obviously what we can't do, we'll get contractors in to do that if the budget's still there for that." This statement indicates that the Chief Executive Officer and another individual (understood to be his spouse) intend

to personally perform renovation works at a Shire-owned property, funded from the \$50,000 approved under Decision CM 26/04/084 from the Rylington Park Working Capital Reserve.

I seek access to:

5. Any documents recording how the personal labour contribution of the Chief Executive Officer and/or his spouse to the Rylington Park homestead renovation is to be accounted for in the Shire's financial records, including any policy advice, internal memoranda, or direction from the Manager Financial Services or external auditor on this matter.

6. Any purchase orders, invoices, quotes, contractor agreements, or materials receipts relating to the Rylington Park homestead renovation works approved under CM 26/04/084, from 15 April 2026 to the date of this application.

7. Any procurement records or competitive quote documentation obtained prior to approval of the \$50,000 expenditure, as required under the Shire's Purchasing Policy.

NOTES ON FORMAT AND FEE

I request that documents be provided in electronic format (PDF) where possible, to the email address provided to the Shire. I understand an application fee of \$30 is payable and will arrange payment upon confirmation of receipt of this application. If the estimated charges are likely to exceed \$25 beyond the application fee, please advise before proceeding so that I may confirm whether to continue.

If any documents are withheld in whole or in part, I request that you specify the exemption(s) relied upon under the FOI Act for each document or part withheld, as required by section 26 of the Act.

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